

Dr. Vidya Ram And Brothers Cold Storage And Ice Factory v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 March 2021 · Writ - C No. 18949 of 2020 · **Listed for service report; dedicated-feeder grievance not decided.**

HEADNOTE

The Allahabad High Court recorded a writ grievance that the distribution licensee was granting a third-party connection from the petitioners' dedicated independent feeder contrary to the Electricity Supply Code, 2005, granted time for a counter affidavit, issued notice to the private respondent, and listed the matter for a service report, without construing the Code or granting interim relief.

FACTUAL SUMMARY

The petitioners, a cold storage and ice factory, obtained a dedicated independent feeder after paying processing fees and expenses. They alleged that the distribution licensee was granting a connection to respondent no. 4 from that feeder contrary to the Electricity Supply Code, 2005. On 24 November 2020 a Division Bench recorded the grievance and granted the Nigam time to file a short counter. Later listings allowed further time, directed a rejoinder, issued notice to the private respondent, and on 23 March 2021 adjourned for a service report. No interim relief issued.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

procedural listing — dedicated independent feeder

HOLDING

Six listing orders record the petitioners' grievance that the Nigam was tapping their dedicated independent feeder, grant time for affidavits, issue notice to the private respondent, and adjourn for a service report, without construing the Electricity Supply Code, 2005 or granting interim or final relief. ¶ 1-6

PRINCIPLE TAGS

procedural-listing-no-construction The extract is a chain of adjournments and notice directions on a dedicated-feeder writ; no Supply Code clause is construed and no electricity relief is granted or refused. ¶ 1-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE LICENSEE MAY GRANT A THIRD-PARTY CONNECTION FROM THE PETITIONER'S DEDICATED INDEPENDENT FEEDER CONTRARY TO THE ELECTRICITY SUPPLY CODE, 2005

Recorded as the writ grievance; listed for affidavits, notice and service without a merits order. ¶ 1